

Gajendra Singh Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 September 2017 · Writ-C No. 40997 of 2017 · Writ-C No. 40997 of 2017 · **Writ disposed; EE to pass s.126/cl.6.5 assessment; recovery subject thereto.**

HEADNOTE

Where recovery is pressed on alleged theft of electricity and the Executive Engineer has not completed assessment, the writ court will not decide the dues. The Executive Engineer must pass assessment under section 126 of the Electricity Act, 2003 read with clause 6.5 of the U.P. Electricity Supply Code, 2005 if not already passed, inform the consumer, and keep recovery subject to that order; any remaining dispute lies in an appeal under section 127.

FACTUAL SUMMARY

After an FIR dated 16 May 2015 for theft of electricity, the petitioner deposited compounding fee before the Magistrate. He later asserted that no assessment had been made and, on 11 July 2017, objected denying theft and any dues. The Executive Engineer on 15 July 2017 called for a Sub-Divisional Officer's report to dispose of that grievance; the report was not finalized while recovery was pressed through a citation dated 25 May 2017, which this writ petition challenged.

HOLDING-UNITS

INTERPLAY · EA2003::126

assessment and recovery after theft FIR

HOLDING

On a writ challenging recovery for alleged theft of electricity where the consumer contends that no assessment has been passed and the Executive Engineer has called for a report on the consumer's objection, the Executive Engineer is to pass orders of assessment in terms of section 126 of the Electricity Act, 2003 read with clause 6.5 of the U.P. Electricity Supply Code, 2005 if not already passed, duly inform the consumer, and complete that exercise within three weeks of a certified copy; recovery remains subject to that order. If the consumer is satisfied he may deposit the amount found recoverable; if he disputes it, an appeal under section 127 is the remedy. The writ is disposed of on those observations without adjudicating the theft allegation or the quantum. ¶ 1

FLAG Court referred to 'Section 126 of the U.P. Electricity Act, 2003'; the provision is section 126 of the Electricity Act, 2003.

PRINCIPLE TAGS

relegate-to-statutory-remedy Where recovery is pressed on alleged theft of electricity and the Executive Engineer has not completed assessment, the writ court will not decide the dues. The Executive Engineer must pass assessment under section 126 of the Electricity Act, 2003 read with clause 6.5 of the U.P.. ¶ 1

opportunity-before-final-assessment Where recovery is pressed on alleged theft of electricity and the Executive Engineer has not completed assessment, the writ court will not decide the dues. The Executive Engineer must pass assessment under section 126 of the Electricity Act, 2003 read with clause 6.5 of the U.P.. ¶ 1

s135-arrest-safeguards-and-compounding-remedy Where recovery is pressed on alleged theft of electricity and the Executive Engineer has not completed assessment, the writ court will not decide the dues. The Executive Engineer must pass assessment under section 126 of the Electricity Act, 2003 read with clause 6.5 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A FINAL ASSESSMENT UNDER SECTION 126 HAD ALREADY BEEN PASSED

Direction is to pass assessment 'if not already passed'. ¶ 1

NOT DECIDED — MERITS OF THE THEFT ALLEGATION, COMPOUNDING, AND THE RECOVERY CITATION DATED 25.05.2017

¶ 1

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.